

File No.: EXP202303087

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 3, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right to Erasure against RENFE VIAJEROS SOCIEDAD MERCANTIL ESTATAL, S.A. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that on November 10 and December 28, 2022, they sent two burofaxes requesting the erasure of their data to the respondent, also attaching a previous request dated August 22, 2022, which was duly stamped at that time, sending their communications to the postal address Paseo de las Delicias 61, 28045, Madrid. The first communication was returned, while the burofax dated December 28, 2022, is recorded as delivered, but, after the one-month period to obtain the corresponding response, they have not received it.

SECOND: In accordance with the mechanism prior to the admission of complaints filed with the AEPD, as provided in Article 65.4 of the LOPDGDD, which consists of forwarding them to the data protection delegates designated by the data controllers or processors, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, the complaint was forwarded to ENTIDAD PÚBLICA EMPRESARIAL RENFE-OPERADORA and RENFE VIAJEROS SOCIEDAD MERCANTIL ESTATAL, S.A. (hereinafter, the respondent) for analysis and response within a month.

THIRD: On May 3, 2023, the AEPD admitted the complaint for processing after three months had passed since it was received by the aforementioned Agency.

FOURTH: On May 3, 2023, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the non-admission of the complaint, as the respondent provided documentation evidencing the erasure of the complainant's data. The resolution was notified to the appellant on May 31, 2023, as recorded in the file.

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FIFTH: On June 23, 2023, the appellant filed a motion for reconsideration through the Registry of the Regional Institute of Safety and Health at Work, registered on June 29, 2023, in the Electronic Registry of the AEPD, against the resolution issued in file EXP202303087, expressing their disagreement with the contested resolution.

Subsequently, they submitted two writings through the Registry of the Regional Institute of Safety and Health at Work dated June 29, 2023, registered in the Electronic Registry of the AEPD on June 29 and July 7, 2023, respectively.

On July 25, 2023, they submitted a writing through the Registry of the Regional Institute of Safety and Health at Work, registered on July 25, 2023, in the Electronic Registry of the AEPD.

Finally, on September 1, 2023, they submitted a writing through the Registry of the Regional Institute of Safety and Health at Work, registered on September 4, 2023, in the Electronic Registry of the AEPD.

SIXTH: On January 19, 2024, the motion for reconsideration was resolved favorably, as this Agency had issued contradictory resolutions regarding the same claim, leading to the current complaint.

SEVENTH: Once the motion for reconsideration was upheld, the complaint, the motion for

reconsideration, and the favorable resolution of that motion were forwarded to the respondent again so that, within 15 working days, they could provide any arguments they deemed appropriate. The respondent, in summary, claims to have addressed the right and reiterates the arguments presented against the initial complaint.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including the power to "order the data controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase such personal data without undue delay when one of the following grounds applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1) and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or of any copies or replications of those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

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V

Conclusion

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, and given that the right to erasure has been fully addressed by providing the requested information and reasonably denying what could not be provided, it is appropriate to dismiss the claim that initiated this procedure.

In this case, a claim is made for the lack of attention to the right of erasure requested by the claimant on 28/12/2022. It is recorded in the proceedings that this request to exercise this right was received by

the respondent on 02/01/2023 and that, when not even a month had passed since its receipt, the claim that motivates these proceedings was submitted to this Agency.

On the other hand, it is evidenced that the request for the erasure of personal data was responded to in a timely manner, with an agreement to erase the requested data, although the response issued by the respondent could not be delivered to the claimant until 31/03/2023 due to reasons not attributable to them. The respondent had to make several attempts to deliver the response to the right to the claimant.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by A.A.A. against RENFE VIAJEROS SOCIEDAD MERCANTIL ESTATAL, S.A.

SECOND: TO NOTIFY this resolution to A.A.A. and to RENFE VIAJEROS SOCIEDAD MERCANTIL ESTATAL, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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